

Ref No.: BD-ACEPM-SAMCO-LET-033

Date: Tuesday, 05th of May 2026

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Early Warning & Notification of Fact (pursuant to Sub-Clause 20.1)- Site Progress and Constraints for Buildings B1-B4

Reference (S):

- 1) Engineers's Letter Ref. BD-ACEPM-SAMCO-LET-0029 dated 24/02/2026
- 2) Contractor's Letter Ref. BD-SAMCO-ACEPM -LET-0071 dated 27/04/2026

Dear Sir,

Reference is made to your Letter No. (2) concerning the purported Early Warning and Notification under Sub-Clause 20.1 (Contractor's Claims).

The Engineer wishes to clarify that the content and manner of submission reflect a fundamental misapplication of Sub-Clause 20.1. The referenced provision governs the Contractor's entitlement to claims and requires the Contractor to submit a clear and specific notice describing the event or circumstance giving rise to such claim.

Furthermore, pursuant to Sub-Clause 20.1, the Contractor is obligated to submit a fully detailed claim within 42 days after becoming aware, or when he should have become aware, of the relevant event or circumstance. The repeated issuance of multiple notices for the same event, without proper substantiation or progression into a detailed claim, does not comply with the contractual requirements and undermines the intended claims procedure.

The Engineer also reiterates and fully maintains the position stated in his previous correspondence Ref. No. (1), including all contractual clarifications and determinations contained therein.

Additionally, the use of formal contractual correspondence for the purpose of routine narration of project status or general observations constitutes a misuse of contractual communication channels and is not in accordance with the agreed communication protocol under the Contract.

Accordingly, the content of the aforementioned correspondence, including the referenced letter, shall not be recognized as a valid contractual notice or claim for the purposes of Sub-Clause 20.1, and shall not give rise to any contractual entitlement.

Should the Contractor intend to submit a valid notice, claim, or matter requiring formal determination, the same must be clearly identified, properly substantiated, and submitted in strict compliance with the relevant provisions of the Contract.

The Employer and the Engineer expressly reserve all rights under the Contract in respect of any non-compliant or improper submissions. No inference, waiver, or acknowledgment shall arise from the receipt of such correspondence unless formally issued in accordance with the Contract provisions.

Yours faithfully,

Eng. / Abdelaziz Mohammed.



Attachment(s):

CC:

Eng. Mohamed Hamza - Projects Manager

Eng. Mohamed Gala - Owner representative

Eng. Ahmed Saafan – Project Controls Director

Eng. Ramy Refaat – Commercial Contracts Director

Eng. Osama Waly – PCO representative

